

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
BLAYN CROSSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE TYLER
EHRLEIN, DETECTIVE ROBERT HINES, Shield No.
5991, SERGEANT DIVERS, POLICE OFFICER DANIEL
RUSSELL, Shield No. 18296, and POLICE OFFICERS
JOHN DOES # 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,Defendants.
----- X

SUMMONS

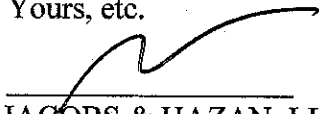
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 8, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Detective Robert Hines, Shield No. 5991, Narcotics Borough Brooklyn North, 1 Police
Plaza, Room 1100, New York, New York, 10038

Detective Tyler Ehrlein, Narcotics Borough Brooklyn North, 1 Police Plaza, Room 1100, New York, New York, 10038

Sergeant Divers, Narcotics Borough Brooklyn North, 1 Police Plaza, Room 1100, New York, New York, 10038

Police Officer Daniel Russell, Shield No. 18296, Recruit Training Section, 235 East 20th Street, Room 627, New York, New York 10003

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff BLAYN CROSSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 15, 2012, at approximately 2:50 p.m., plaintiff BLAYN CROSSON was working and while lawfully present on the sidewalk in front of the Gershow Scrap Yard, located at 1888 Pitkin Avenue, Brooklyn, New York, he was subjected to an unlawful, stop, question, frisk, and search, an unlawful seizure and detention, false arrest and false imprisonment by the individually named defendant New York City Police Officers. Thereafter, the defendant police officers maliciously prosecuted plaintiff, denied plaintiff a right to a fair trial, and committed the tort of abuse of process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. All criminal charges brought against plaintiff stemming from the August 15, 2012 arrest were dismissed in their entirety on April 19, 2013. The individually named defendant police officers intentionally targeted plaintiff for the purpose of violating plaintiff's rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York in retaliation against plaintiff BLAYN CROSSON for filing a complaint with the Civilian Complaint Review Board ("CCRB") against defendant Detective Tyler Ehrlein regarding an incident that occurred on November 8, 2011. CCRB substantiated plaintiff's complaint against Detective Ehrlein for abuse of authority

when Detective Ehrlein stopped, frisked, searched, and arrested plaintiff on November 8, 2011. Furthermore, CCRB recommended that the New York City Police Department bring charges against Detective Ehrlein and discipline Detective Ehrlein for engaging in such unlawful conduct toward plaintiff. Instead of learning from his mistakes and putting the November 8, 2011 incident behind him, Detective Ehrlein retaliated against plaintiff on August 15, 2012 and violated plaintiff's constitutional rights a second time.

PARTIES

2. Plaintiff BLAYN CROSSON is a resident of the State of New York.

3. DETECTIVE TYLER EHRLEIN, is and was at all times relevant herein, an officer, detective, employee, and agent of the New York City Police Department.

4. DETECTIVE TYLER EHRLEIN, was at all times relevant herein assigned to the Narcotics Borough Brooklyn North command.

5. DETECTIVE TYLER EHRLEIN, is being sued in his individual and official capacities.

6. DETECTIVE ROBERT HINES, Shield No. 5991, is and was at all times relevant herein, an officer, detective, employee, and agent of the New York City Police Department.

7. DETECTIVE ROBERT HINES, Shield No. 5991, was at all times relevant herein assigned to the Narcotics Borough Brooklyn North command.

8. DETECTIVE ROBERT HINES, Shield No. 5991, is being sued in his individual and official capacities.

9. SERGEANT DIVERS, is and was at all times relevant herein, an officer, Sergeant, employee, and agent of the New York City Police Department.

10. SERGEANT DIVERS, was at all times relevant herein assigned to the Narcotics Borough Brooklyn North command.

11. SERGEANT DIVERS, is being sued in his individual and official capacities

12. POLICE OFFICER DANIEL RUSSELL, Shield No. 18296, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER DANIEL RUSSELL, Shield No. 18296, is being sued in his individual and official capacities.

14. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

15. New York City Police Officers John Does #1-10, were at all times relevant herein assigned to the Narcotics Borough Brooklyn North command

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. By way of background, on November 8, 2011 defendant Detective Tyler Ehrlein and several other NYPD officers were recorded on video pulling an unmarked police van up beside plaintiff who was lawfully walking on a sidewalk, jumping out of the unmarked van, forcefully grabbing plaintiff's person, dragging him into the rear of the police van, and falsely arresting plaintiff, without cause or any basis or legal justification.

23. The November 8, 2011 incident involving Detective Tyler Ehrlein was terrifying for plaintiff Blayn Crosson, and plaintiff felt extraordinarily violated and emotionally traumatized by the incident and the unconstitutional conduct of Detective Tyler Ehrlein. Therefore, plaintiff filed a Complaint with the Civilian Complaint Review Board regarding the unlawful conduct of Detective Tyler Ehrlein and his colleagues toward plaintiff on November 8, 2011.

24. The Civilian Complaint Review Board investigated plaintiff's complaint and substantiated plaintiff's allegations against Detective Tyler Ehrlein and determined that Detective Tyler Ehrlein abused his authority when he unlawfully stopped, frisked, searched, and falsely arrested plaintiff Blayn Crosson on November 8, 2011.

25. The Civilian Complaint Review Board recommended that the New York City Police Department issue charges and specifications against Detective Tyler Ehrlein for his unlawful and unconstitutional conduct toward plaintiff on November 8, 2011 and further recommended that Detective Ehrlein be disciplined for engaging in such unlawful conduct.

26. Upon information and belief, defendant Detective Tyler Ehrlein was disciplined by the New York City Police Department for abusing his authority as a police officer on November 8, 2011 when he engaged in unlawful conduct and violated plaintiff's constitutional rights.

27. Instead of learning from his mistakes and recognizing that he engaged in unlawful conduct toward plaintiff on November 8, 2011, defendant Detective Tyler Ehrlein was angry that plaintiff Blayn Crosson filed a complaint against him with CCRB, and Detective Ehrlein wanted to retaliate against plaintiff for filing the CCRB complaint against him.

28. Defendant Tyler Ehrlein decided to retaliate against plaintiff Blayn Crosson on August 15, 2012 by falsely arresting plaintiff at his workplace and initiating a criminal prosecution against plaintiff for crimes plaintiff did not commit.

29. On August 15, 2012, at approximately 2:50 p.m., plaintiff was at work and lawfully standing on the sidewalk in front of the Gershow Scrap Yard, located at 1888 Pitkin Avenue, Brooklyn, New York, waiting for his co-worker who was inside getting paid for his work.

30. On August 15, 2012 at approximately 2:30 p.m. plaintiff and two co-workers delivered a truck filled with scrap metal to the Gershow Scrap Yard.

31. Plaintiff and his two co-workers unloaded the scrap metal from the vehicle into the Gershow Scrap Yard. Thereafter, plaintiff and one of his co-workers drove their vehicle out of the scrap yard and lawfully parked the vehicle on the street while plaintiff's other co-worker went inside the main office of the scrap yard to obtain payment for the scrap metal the men just delivered to the yard.

32. Plaintiff and his co-worker lawfully stood in front of the Gershow Scrap Yard waiting for their co-worker to return with the payment for the scrap metal they delivered until approximately 2:50 p.m. when the individually named defendant police officers approached plaintiff from behind.

33. Plaintiff did not notice the officers approaching until they were approximately five feet away from him, and one of the defendant police officers asked plaintiff whether the officers could search plaintiff's person.

34. Plaintiff informed the defendant police officer that plaintiff did not consent to the defendant police officers searching his person.

35. Nevertheless, the defendant police officers ignored plaintiff and unlawfully pushed plaintiff in an extremely forceful and aggressive manner against the side of the van that plaintiff and his co-workers used that day.

36. The individually named defendant police officers unlawfully frisked plaintiff over his clothing, without reasonable suspicion, probable cause or any legal justification.

37. The individually named defendant police officers touched all areas of plaintiff's body, and then unlawfully searched inside of plaintiff's pockets, without probable cause or any legal justification, removing all of the contents therein.

38. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

39. At no time did the defendant police officers recover any illegal weapons, drugs, or contraband of any kind from plaintiff's person or from an area within plaintiff's possession, custody or control.

40. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

41. Nevertheless, defendants unlawfully handcuffed plaintiff, falsely arrested and falsely imprisoned him without legal justification or probable cause.

42. The defendant police officers then placed plaintiff in the back of the NYPD van and drove around for approximately four (4) hours and arrested several additional people.

43. The defendant police officers removed half empty bottles of water from a public trash can and maliciously tried to give the water to plaintiff to drink.

44. Plaintiff initially accepted the water bottles from the defendant police officers, but then plaintiff realized that the defendant police officers removed a water bottle from a public trash can, before they offered the water bottle to plaintiff.

45. After driving around Brooklyn for approximately four (4) hours, the defendant police officers eventually drove plaintiff to the 75th precinct, located at 1000 Sutter Ave, Brooklyn, NY 11208, whereat plaintiff was unlawfully searched and then detained in a filthy holding cell.

46. The defendant police officers fingerprinted and photographed plaintiff after he had already been detained in the precinct's holding cell for many hours.

47. Eventually, after being unlawfully detained by the defendant police officers at the 75th Precinct for many hours, plaintiff was transported by defendants to Kings County Central Booking where he was detained in several holding cells with other prisoners, some of whom were intimidating and accused of committing serious crimes.

48. After being unlawfully detained by the individually named defendant police officers for approximately 24 hours, at approximately 3:00 p.m. on August 16, 2012, plaintiff was arraigned in Kings County Criminal Court, and plaintiff was charged with misdemeanor crimes he did not commit, based upon the false allegations against plaintiff that defendants communicated to the Kings County District Attorney's Office.

49. Plaintiff was released on his own recognizance by the Court at arraignment.

50. Claimant was forced to appear in Kings County Criminal Court on approximately seven additional dates to address the false criminal charges filed against him by defendants.

51. On April 19, 2013 all criminal charges stemming from plaintiff's August 15, 2012 arrest were dismissed and sealed and the criminal prosecution terminated in plaintiff's favor.

52. Some of the individually named police officer defendants did not physically touch plaintiff throughout his arrest and prosecution, but they observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law by their fellow police officers and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and malicious prosecution of plaintiff by their police officer colleagues.

53. Prior to August 15, 2012 a federal class action civil rights lawsuit was filed in the Southern District of New York alleging, amongst other things, that the City of New York and the NYPD has a policy practice and/or custom of permitting and/or encouraging NYPD officers to illegally and unconstitutionally stop, question, frisk and search individuals, especially minorities in a manner consistent with the manner in which defendants in this case violated plaintiff's Constitutional Rights. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

54. On or about August 12, 2013, the Court in Floyd entered Judgment against defendant City of New York and the New York City Police Department after a lengthy trial. The Court issued a lengthy Opinion and Order detailing the evidence presented at trial and found that

the City of New York and the NYPD had a policy, practice and/or custom of permitting and/or encouraging New York City Police Officers to illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See id. The Court's Judgment against defendant City of New York and the findings in its Opinion and Order, dated August 12, 2013, applies to and includes the time period during which the underlying stop, question, frisk, search and arrest (August 15, 2012) of plaintiff Blayn Crosson occurred. See id.

55. As a result of defendant City of New York and the New York City Police Department's policy, practice and/or custom of unconstitutionally stopping, questioning, frisking and searching individuals, without probable cause and/or reasonable articulable suspicion, and because the City of New York and the New York City Police Department are deliberately indifferent about the fact that New York City Police Officers routinely engaged in this unconstitutional behavior, the City of New York and the NYPD encourage and/or permit there to be a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

56. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

57. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, searching, and arresting individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct such unlawful stops, searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, searching, and arresting individuals without a factual basis supporting a legal reason to do so, and said pattern, practice, policy, or custom was the proximate cause of the constitutional violations to plaintiff by the defendant police officers that are described herein.

58. The unlawful stop, question, frisk, search, false imprisonment, false arrest, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma on August 15, 2012.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, maliciously prosecuted, denied plaintiff due process and a right to a fair trial and subjected to the officers' abuse of process, all without probable cause or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Thereafter, the individually

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

70. Defendants lacked probable cause to search plaintiff.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question and Frisk

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. The conduct of defendants in stopping, questioning and frisking, and plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiffs.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which he was prosecuted.

84. Upon information and belief, the prosecution and criminal proceedings terminated favorably to plaintiffs on or about April 19, 2013.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 86 with the same force and effect as if fully set forth herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

89. Defendants filled out false and misleading police reports, and forwarded them to prosecutors in the Kings County District Attorney's Office.

90. Defendants signed false and misleading supporting depositions in Kings County Criminal Court and forwarded them to prosecutors in the Kings County District Attorney's Office.

91. In withholding/creating false evidence against plaintiff Blayn Crosson, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

92. As a result of the foregoing, plaintiff Blayn Crosson, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION **Malicious Abuse of Process**

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 93 with the same force and effect as if fully set forth herein.

95. Defendants issued legal process to plaintiff Blayn Crosson when they placed him under arrest, and when defendant Detective Robert Hines entered false information onto and signed the supporting deposition containing false information and filed the fraudulent document with the Kings County Criminal Court in support of the criminal court complaint that charged plaintiff with crimes he did not commit.

96. Defendants arrested plaintiff Blayn Crosson in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to retaliate against plaintiff for filing a prior CCRB complaint against defendant Detective Ehrlein that was substantiated by CCRB and for which charges and speculations were issued against defendant Ehrlein by the New York City Police Department and for which defendant Detective Ehrlein was ultimately disciplined by the NYPD.

97. Defendants acted with intent to do harm to plaintiff Blayn Crosson without excuse or justification.

98. As a result of the foregoing, plaintiff Blayn Crosson sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

103. Defendants failed to intervene to prevent the unlawful conduct described herein.

104. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

106. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

First Amendment Right To Be Free From Retaliation for Petitioning Government Officials (Against Defendant Detective Tyler Ehrlein)

107. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. Reporting misconduct by police officers to government officials is conduct that is protected by the Petition Clause of the First Amendment.

109. Filing a complaint with the NYPD Internal Affairs Bureau or with the NYC Civilian Complaint Review Board and/or publically alleging that a police officer or multiple police officers engaged in police misconduct and/or an abuse of their authority and/or public corruption and/or violated an individual's Constitutional Rights under the United States Constitution constitutes reporting misconduct by police officers to government officials and is therefore protected by the Petition Clause of the First Amendment.

110. The unlawful stop, question frisk, search, unlawful seizure, false arrest and false imprisonment, abuse of process, malicious prosecution and deprivation of plaintiff's right to due process and his right to a fair trial by defendant Detective Tyler Ehrlein constituted unlawful retaliation by defendant Detective Tyler Ehrlein for plaintiff engaging in activity protected by the First Amendment to the United States Constitution.

111. Defendant Detective Ehrlein acted with wanton, callous and reckless disregard of Plaintiff's First Amendment rights in confronting and seizing plaintiff at plaintiff's workplace, in front of plaintiff's co-worker's, detaining, arresting, and attempting to prosecute plaintiff in retaliation for exercise of Plaintiff's constitutionally protected rights to file a complaint with the Civilian Complaint Review Board alleging that defendant Detective Ehrlein abused his authority as a police officer and public official when, on or about November 8, 2011 unconstitutionally stopped, frisked, searched, and arrested plaintiff. Notably, plaintiff's allegations to CCRTB against Detective Ehrlein were substantiated, and upon information and belief Detective Ehrlein was disciplined by the New York City Police Department for his unconstitutional behavior toward plaintiff.

112. As a direct and proximate result of such acts, defendant Ehrlein deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. Prior to August 15, 2012, the date of plaintiff's underlying arrest herein, a federal class action civil rights lawsuit was filed in the Southern District of New York alleging, amongst other things, that the City of New York and the NYPD has a policy practice and/or custom of permitting and/or encouraging NYPD officers to illegally and unconstitutionally stop, question, frisk and search individuals, especially minorities in a manner consistent with the manner in which defendants in this case violated plaintiff's Constitutional Rights. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

116. The Federal Court in Floyd has already entered judgment against the City of New York after a lengthy trial and found that for a many years, including the time period of August 15, 2012, the date plaintiff was arrested, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See id.

117. In fact, on or about August 12, 2013, the Court in Floyd entered Judgment against defendant City of New York and the New York City Police Department after a lengthy trial. The Court issued a lengthy Opinion and Order detailing the evidence presented at trial and found that the City of New York and the NYPD had a policy, practice and/or custom of permitting and/or encouraging New York City Police Officers to illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See id. The Court's Judgment against defendant City of New York and the findings in its Opinion and Order, dated August 12, 2013, applies to and includes the time period during which the underlying stop, question, frisk, search and arrest (August 15, 2012) of plaintiff Blayn Crosson occurred. See id.

118. As a result of defendant City of New York and the New York City Police Department's policy, practice and/or custom of unconstitutionally stopping, questioning, frisking and searching individuals, without probable cause and/or reasonable articulable suspicion, and because the City of New York and the New York City Police Department are deliberately indifferent about the fact that New York City Police Officers routinely engaged in this unconstitutional behavior, the City of New York and the NYPD encourage and/or permit there to be a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

119. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

120. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, searching, and arresting individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct such unlawful stops, searches and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, searching, and arresting individuals without a factual basis supporting a legal reason to do so, and said pattern, practice, policy, or custom was the proximate cause of the constitutional violations to plaintiff by the defendant police officers that are described herein.

121. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City

Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

122. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

123. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Department's suspicionless stops, seizures, questions, frisks, searches, and arrests, without reasonable suspicion, probable cause or any legal justification for such conduct.

124. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

125. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff BLAYN CROSSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 January 8, 2015

By: _____

STUART E. JACOBS
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 8, 2015



STUART E. JACOBS